

Defense counsel, Scott Johannessen, has submitted a declaration stating that he was Defendants counsel prior to March 4, 2024 (the date the default was entered) and was late in filing the answer because he was preparing a brief for the Ninth Circuit Court of Appeals. Defense counsel even informed Plaintiff that an answer would be filed the week after. The answer was in fact filed the week after, but Plaintiff had already sought and obtain Defendants' default. The Court finds that defense counsel has sufficiently establish his mistake was the cause of the default. The Court will set aside the default and the default judgment upon which it is based.

The motion is **GRANTED**. No proposed order was lodged with the Court. Defendants shall prepare the order.

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**9:00 a.m. – Review Hearings**

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**AUGUST VS. KAPANOSKE, ET AL.**

**Case Number: 23CV-0203195**

This matter is on calendar for trial setting. Plaintiff was to five notice and file proper proof of service. Proof of service has not been filed. Should all parties appear despite the lack of service, the Court intends to set the mater for trial. The Court designates this matter as a Plan II case and intends on setting the matter for trial no later than February 4, 2025. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

**BELTRAN VS. M.K. & A., LLC**

**Case Number: 23CV-0203159**

This matter is on calendar for review regarding status of the case. The Court notes that Defendant M. K. & A. has new counsel as of May 22, 2024. The Court notes that the litigation is at issue and the matter is ready to be set for trial. However, the matter was on calendar this morning for Plaintiff's Motion for Leave to File Amended Complaint that was denied for a lack of service on Defendant. **An appearance is necessary on today's calendar to discuss whether this matter is ready to be set for trial, and if appropriate, to set a trial date.**

**BROWN VS. ZINCO HOLDING, LLC.ET. AL.**

**Case Number: CVCV21-0198122**

This matter is on calendar to reset a court trial that has a 2-3 day time estimate. This matter has been deemed exempt from plan designation, however, the Court intends to set the matter for trial before the end of 2024. The parties are ordered to meet and confer prior to the hearing regarding proposed dates for court trial. **An appearance is necessary on today's calendar.**

**CITY OF ANDERSON VS. KRUMINS, ET AL.**

**Case Number: 23CV-0203032**

This matter is on calendar for review regarding status of property/removal of Respondents' remaining items. The Court has reviewed the Eleventh Report of the Receiver which indicates the property is ready to be listed for sale. **An appearance is necessary on today's calendar.**

**HICKS, ET AL. VS. PARTIN, ET AL.**

**Case Number: 22CV-0201086**

This matter is on calendar for status of arbitration. The Court has reviewed the Joint Status Statement filed on September 9, 2024. The matter is continued to **Monday, November 18, 2024 at 9:00 a.m. in Department 63** for review regarding status of arbitration. **No appearance is necessary on today's calendar.**

**LIEBERMAN VS. THE CITY OF REDDING, ET AL.**

**Case Number: CVPM21-0197061**

This matter is on calendar for review regarding status of counsel. The Court notes that Defendant served Plaintiff with notice of today's hearing on September 3, 2024. The Court notes that this matter is set to commence trial on October 1, 2024. **An appearance is necessary on today's calendar.**

**MATLOCK VS. WOLF SCOOTERS, LLC, ET AL.**

**Case Number: CVPO22-0199209**

This matter is on calendar for review regarding status of the bankruptcy stay. No status report was filed. **An appearance is necessary on today's calendar.**

**OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION**

**Case Number: 22CV-0201036**

This matter is on calendar for review regarding status of discovery and to select a date for the class certification motion. The parties filed a Joint Report Re Case Management asking for a sixty-day continuance to continue to meet and confer regarding discovery. This matter is continued to **Tuesday, November 12, 2024 at 9:00 a.m. in Department 63** for review regarding discovery and to set a hearing date for the class certification motion. **No appearance is necessary on today's calendar.**

**SPRING OAKS CAPITAL SPV, LLC VS. NICOLLS**

**Case Number: 23CVG-00437**

This matter is on calendar for review regarding status of the case. On July 1, 2024, the parties informed the Court that a settlement had been reached. The trial date was vacated and the matter was set for review on today's date. The Court notes that Plaintiff has filed a trial brief noticed for a trial today at 10:00 a.m. That trial was vacated on July 1, 2024. **An appearance is necessary on today's calendar.**

**TORRES CARDENAS VS. PICK-N-PULL AUTO DISMANTLERS, LLC, ET AL.**

**Case Number: 23CV-0201565**

This matter is on calendar for review regarding status of service and trial setting. At the last hearing on July 15, 2024, Plaintiff asserted that all parties had been served and have answered. The Court accepted this representation, however, a review of the file reveals that Pick-N-Pull Auto Dismantlers, LLC and Schnitzer Steel Industries, Inc. filed an Answer on December 21, 2023. Pick-N-Pull Auto Dismantlers, Stockton, LLC also filed an Answer on December 21, 2023, however, Pick-N-Pull Auto Dismantlers, Stockton, LLC was dismissed from the case on February 1, 2024. There is no Proof of Service of Summons or Answer on file for Pick-N-Pull Auto Dismantlers Pasadena, Inc. The Court expects Plaintiff's counsel to be aware of which defendants were named in the suit and the status of service for each. Absent good cause for not serving Defendant Pick-N-Pull Auto Dismantlers Pasadena, LLC, the Court intends to issue an Order to Show Cause Re Monetary Sanctions to Plaintiff and counsel for failure to timely serve Pick-N-Pull Auto Dismantlers Pasadena, LLC and for providing inaccurate information to the Court. **An appearance is necessary on today's calendar.**

**WILLIAMS VS. FOUNDATION PHYSICIANS MEDICAL GROUP, ET AL.**

**Case Number: 22CV-0201099**

This matter is on calendar for review regarding status of arbitration. The parties filed a Joint Status Report informing the Court that the matter is still proceeding in arbitration. The matter is continued to **Monday, March 17, 2025, at 9:00 a.m. in Department 63** for status of arbitration. **No appearance is necessary on today's calendar.**